

Smti Junaki Shyam Boro vs The State Of Assam And 6 Ors on 20 May, 2021

Equivalent citations: AIRONLINE 2021 GAU 266

Author: Rumi Kumari Phukan

Bench: Rumi Kumari Phukan

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GAHC010017212013

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/2270/2013

SMTI JUNAKI SHYAM BORO
W/O LT. BISESWAR BORO ALIAS LT. BISESWAR BORO VILL and P.O.
BALIPATHAR DIST. KARBI ANGLONG, ASSAM.

VERSUS

THE STATE OF ASSAM AND 6 ORS
REP. BY THE COMMISSIONER AND SECRETARY TO THE GOVT.OF ASSAM,
PUBLIC HEALTH ENGINEERING DEPARTMENT, DISPUR, GUWAHATI -
781006.

2:THE PRINCIPAL ACCOUNTANT GENERAL A and E

ASSAM
BELTOLA
GUWAHATI.

3:THE DIRECTOR OF PENSION

ASSAM
HOUSEFED COMPLEX
GUWAHATI.

4:THE EXECUTIVE ENGINEER

PUBLIC HEALTH ENGINEERING DEPARTMENT
DIPHU

KARBI ANGLONG
ASSAM.

5:THE TREASURY OFFICER

Page No

DIPHU
KARBI ANGLONG
ASSAM.

6:THE BRANCH MANAGER

STATE BANK OF INDIA
BOKAJAN BRANCH
DIPHU
KARBI ANGLONG
ASSAM.

7:SMT. KABE INGTIPI
W/O LT. CHONG TERANG VILL- NOPAK TERANG GAON
RONGKIM
P.S. BOKAJAN KARBI ANGLONG
ASSAM

Advocate for the Petitioner : MR.P SHARMA

Advocate for the Respondent : SC, P H E

BEFORE
HONOURABLE MRS. JUSTICE RUMI KUMARI PHUKAN

ORDER

Date : 20-05-2021 Heard Mr. P. Sharma, learned counsel appearing for the petitioner. Also heard Mr. D. Gogoi, learned standing counsel appearing for the respondent Nos.1--4 and Mr. B.D. Das, learned senior counsel appearing for and on behalf of the respondent No.7. None is present for and on behalf of the respondent Nos.5 & 6.

2. The case of the petitioner in short is that her husband Late Biseswar Boro was a Khalachi in the PHE Department, Diphu in Karbi Anglong District, who retired from service on 28.02.2009 and during his lifetime he draw his pension amount in the State Bank of India, Bokajan Branch. The husband of the petitioner died on 23.04.2012, leaving behind the petitioner and their three sons. On his death, the petitioner approached the respondent Page No.# 3/10 authorities claiming the family pension of her deceased husband. On her query, the petitioner was informed that the family pension of her husband was sanctioned to the respondent No.7, who was not known to her.

3. On the RTI reply, it came to the knowledge of the petitioner that her husband Late Biseswar Boro submitted family bio-data and a group photograph along with his wife Kabe Ingtipo/respondent No.7 and the same was submitted before the respondent No.2 for pension and accordingly his pension was granted to her. The petitioner begs to state that her husband, during his lifetime, neither married her nor stayed with respondent No.7, and she in collusion with the respondent authorities have incorporated her name in the pension documents as well as service book of the petitioner's husband.

4. After getting the information, the petitioner submitted a petition on 24.11.2012 before the Executive Engineer, PHE Department, Diphu (respondent No.4), to verify the authenticity of the claim of the petitioner for family pension and till the final result come out, to stop the sanction of the family pension to any other person than the petitioner but till the filing of the petition, no action is taken from the side of the respondent authorities and the petitioner is constrained to approach this Court for redressal of her grievances.

5. In response to the claim of the present petitioner, the respondent No.4 filed their affidavit in reply stating that the husband of the petitioner Late Biseswar Boro was an employee of the Diphu (PHE) Division, who retired on 28.02.2009 and after his retirement, he got pension vide PPO No.90720107355 and at the time of submitting his requisite documents for pension, he submitted a joint photograph with Smti. Kabe Ingtipi as his wife along with family bio-data. Accordingly the Accountant General (A & E), Assam had sanctioned the Page No.# 4/10 pension of Late Biseswar Boro to the employee during his lifetime and the family bio-data, as given by Late Biseswar Boro was entered in the pension paper and the same was sent to the Accountant General office and hence the question of verification of authenticity of the claim for family pension by the answering respondent No.4 does not arise.

6. The respondent No.2, the Principal Accountant General (A&E), Assam also filed their affidavit in the present writ petition, wherein it is stated that Late Biseswar Boro was a Khalasi in the PHE Department, Diphu, Karbi Anglong, who retired on from service w.e.f. 28.02.2009 (AN). After receipt of his pension papers from the departmental authority, vide PPO No.90720107355 forwarded the letter dated 23.06.2010, to the Treasury Officer, Diphu with the request to make the necessary arrangement for payment of pension to the retired official. While authorizing the PPO, the name of family pensioner was recorded as Smti. Kabe Ingtipi (respondent No.7) as the wife of the employee, on the basis of the records/pension forms, furnished by the pension forwarding authority i.e. the Executive Engineer, PHE Department, Diphu, in Pension Paper Form No.2 and in the list of family members in Form.1A (duly signed by the retired official and countersigned by the Executive Engineer, PHE Department, Diphu), besides the joint passport size photographs of the retired Govt. servant with the respondent No.7, received with the case/papers, whereas there was no mention in any documents about the writ petitioner as his wife.

However, in view of the interim order dated 02.05.2013, passed in the present Writ Petition, a letter was issued from their office on 04.06.2013, to the Govt. of Assam, PHE Department and the Treasury Officer, Diphu with the request to stop payment of family pension to Smti. Kabe Ingtipi (respondent No.7), in compliance of the High Court's order.

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7. After the High Court's interim order dated 02.05.2013, passed in the present Writ Petition, the respondent No.7 therein, filed the Misc. Case No.779/2014, for vacation/modification of the interim order so passed. The pleaded case of the respondent No.7 in the Misc. Case is that the petitioner along with her sons used to harass Late Biseswar Boro, both mentally and physically and compelled him to leave his house about 23/24 years back of filing the present writ petition. In the year 1991, Late Biseswar Boro married the respondent No.7 and till the time of his death on 23.04.2012, he resided with her. At the time of retirement, Late Biseswar Boro submitted the family data and a photograph along with the respondent No.7, submitted in the office of the Principal Accountant General, Assam for pensionary benefits and accordingly the family pension, after the death of the retired employee, was paid to the respondent No.7.

8. As stated earlier, the respondent No.7 stated that till the time of his death, Late Biseswar Boro resided with her and during his lifetime, he willingly converted himself to be a follower of the Karbi Customary Law and after his death, he was cremated as per the Karbi Ritual Ceremony. As per the Karbi Customary Law, the second wife has the same right over the properties of her husband as like as the first wife. Accordingly she stated that the respondent authorities have rightly granted the family pension to her. The respondent No.7 further stated that the writ petitioner, who is a retired teacher, deserted her husband during his lifetime and resided separately along with her sons. Accordingly the respondent No.7 prayed to vacate/modify the interim order dated 02.05.2013 and to allow her to receive the monthly family pension of her late husband Biseswar Boro.

9. Heard the learned counsel for both sides and perused the materials available before the Court.

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10. According to the learned counsel for the petitioner, status of the present petitioner is not under challenge that she is the legally married wife of the deceased and although they stayed separately for a long period, but their relation subsisted, there being no any divorce. Reliance has been placed upon the decision of this Court in WP(C) No. 2327/2010 dated 20.04.2010, wherein, this Court by referring to the Rule 143 of Assam Services (Pension) Rules and Rule 24 of the Assam Civil Service Conduct Rules, 1965, has held that no legitimacy can be conferred to the second marriage, which was contracted during the subsistence of the first marriage, without permission of the Govt.

11. Per contra, the learned counsel for the respondent No. 7 has submitted that such a second marriage is permitted as per the customary law and the deceased converted himself to Karbi community. The respondent is also the duly married wife of the deceased, which he endorsed in his official documents to grant pension to the respondent No. 7 and so, she is entitled to pension. It is stated that the petitioner is a working woman and the necessity of the pension to the respondent No. 7 cannot be denied.

12. The official respondent No. 1 to 4 has contended that there was no mention about the first marriage of the deceased with the petitioner in the official record and they have recorded the name

of the respondent No. 7 as his wife, as per his communication to the office.

13. Due consideration has been given to the submission of the learned counsel for both the parties and gone through the documents annexed.

14. The petitioner, herein, in her petition has not disclosed about their long separation with the deceased, but from the interlocutory application filed by the respondent No. 7 for modification and alteration of the interim order, the real picture reveals. According to the Page No.# 7/10 petitioner, she is not aware about the marriage solemnized by her husband, if any, whereas, according to the respondent No. 7, she knows about the first marriage. In her petition, she has stated that the petitioner and her sons tortured her husband and forced him to leave his house, about 24 years back, and, thereafter, deceased Biseswar Bodo married respondent No. 7 in November, 1991 and stayed with her till his death on 23.04.2012, and her deceased husband also submitted family bio-data to the office, showing her as his wife.

15. From the pleadings of the parties, there can be no denial that the present petitioner is the legally married first wife of the deceased person and no divorce was effected between the parties and they have three children, out of the wedlock, which reflected from the legal heirs certificate, annexed with the petition. On the other hand, apart from assertion about the marriage, there is no any other supporting document about the marriage between the respondent No. 7 and the deceased. In absence of any valid documents, status of wife cannot be conferred to the respondent No. 7. So far as regards the certificate issued by the Convener of Karbi Customary Law Committee, annexed with the petition that there is a provision of second marriage, if the husband is totally separated from the first wife and the second wife will have right on the properties, as per customary law; the same cannot take place of law. The pensionary benefit can be granted as per the provisions of Assam Services (Pension) Rules, 1969 and the Assam Civil Service Conduct Rules, 1965, vis-à-vis the prevailing laws.

16. So far as the present case is concerned, parties are Hindus, so their status will be governed by the Hindu Marriage Act. Section 5 (1) of the Hindu Marriage Act provides that neither party have a spouse living at the time of marriage. Under the Hindu law, no Hindu can have more than one wife and if that be so, the second marriage entered into by the Page No.# 8/10 deceased is void in law, being not recognized in law.

17. In Rameshwari Devi -Vs- State of Bihar; AIR 2000 SC 735, it has been held that when the Government servant died, leaving 2 (two) wives, the second marriage by the Government servant being void, only the first wife is entitled to get the pension amount, she being the legally wedded widow. Same has been reiterated in Suraiya Sultana -Vs- State of Assam & Others; 2008 (3) GLR 589, that the second wife, whom the deceased employee of the Government had married during the validity of first marriage and her children, is not entitled to family pension.

18. Now, in the present case, as claimed by the respondent No. 7 herself, she is the second wife of the deceased and such marriage entered into during the subsistence of first marriage and hence, it confers no legitimacy to such marriage. As per Section 143 of the Pension Rules, 1969, pension is

payable to the surviving first widow and pension will not be payable to more than one member of the family at the same time.

19. So far as the Section 24 of Assam Civil Service Conduct Rules, 1965, is concerned, it prohibits the government servant from contracting second marriage without first taking permission from the Government, notwithstanding such subsequent marriage is permissible under the Personal law. From the pleadings on record, it reveals that the deceased, till his retirement, did not furnish the name of nominees to his office/Department, for which there is no any data as regards the family tree of the deceased. He furnished the name of respondent No. 7 as his wife, only after his retirement and admittedly, he has not obtained any permission from the Government, to contract such second marriage with respondent No. 7.

Page No.# 9/10 Neither he informed his office about his marital status. Such declaration about the marriage with respondent No. 7 is of no consequence as he contracted the second marriage in violation of the law and the Rules as indicated above. In absence of such permission, the second wife/respondent No. 7 cannot claim service benefits.

20. In view of the legal heir certificate, present petitioner is the legally married wife of the deceased and they have three sons out of their wedlock and all of them are major. The claim of the petitioner to the benefit of family pension is maintainable in the legal parlance, whereas, the claim of the respondent No. 7 is not tenable. The respondent No. 7 also failed to furnish any specific provision regarding her entitlement under customary law. The decision relied by the respondent in Sirazun Nessa -vs- State of Assam ; 2012 (5) GLR 15, is not applicable to the present case as in the said case, the claim was preferred by widows, under the Muslim Marriage Act.

21. Resultantly, the petition is allowed. Respondents are directed to provide family pension to the petitioner, as per law, without undue delay.

22. In terms of above, the writ petition stands disposed of. Interim order is hereby vacated.

JUDGE Page No.# 10/10 Comparing Assistant